

[REDACTED]

**Justification Review Document
For Sole Source - FAR Part 13.501***

(*Format follows FAR 6.303-2, but modified to reflect FAR subpart 13.5 procedures)

Program/Equipment: The Department of Pathology and Area Laboratory Services (DPALS) seeks to establish a contract of acquisition of [REDACTED] assessments (NGS ID and MRD) genomic sequence analysis using multiplex (PCR) and next generation sequencing with algorithmic quantification of dominant clonal sequence(s).

Authority: 41 United States Code 1901 as implemented in Federal Acquisition Regulation 13.501(a)(1)(ii), sole source (including brand name) under the authority of the simplified procedures for certain commercial items.

Amount: [REDACTED] (Base + four (4) option years)

Prepared by:

[REDACTED]

Contacting Officer:

[REDACTED]

Technical Representative:

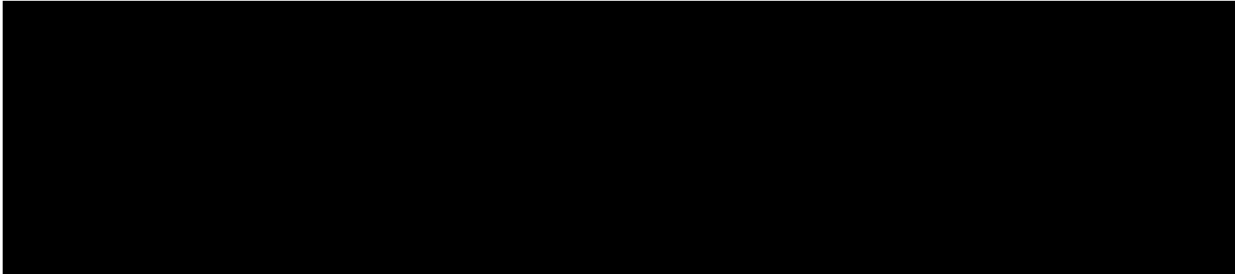
[REDACTED]

Requirements Representative:

[REDACTED]

Reviews:

I have reviewed this justification and find it adequate to support other than full and open competition.



[REDACTED]

**Sole Source Justification and Approval
Under FAR 13.501**

1. Contracting Activity: Medical Readiness Contracting Office-West.

2. Description of Action: This Justification and Approval is for a new Sole Source contract exception to competition in accordance with Federal Acquisition Regulation (FAR) 6.302-1(a) (2) (iii) (b) to [REDACTED] FDA-cleared in vitro diagnostic (IVD) testing services. Minimal residual disease (MRD) is the name given to small numbers of cancer cells from the bone marrow that remain in the person during treatment, or after treatment when the patient is in remission. It is the major cause of relapse in blood cancers, including multiple myeloma and leukemia. Ultra-sensitive molecular biology tests can measure minute levels of cancer cells in tissue samples, sometimes as low as one cancer cell in a million normal cells. The contract will be Firm Fixed Price (FFP) using Defense Health Program (DHP) funds.

[REDACTED]

3. Description of Supplies/Services: The Brooke Army Medical Center (BAMC), Department of Pathology is requesting a new highly specialized laboratory testing service requirement. [REDACTED] is available as an FDA-cleared in vitro diagnostic (IVD) test service provided by [REDACTED] to detect measurable residual disease (MRD) in bone marrow from patients with multiple myeloma or B-cell acute lymphoblastic leukemia (B-ALL) and blood or bone marrow from patients with chronic lymphocytic leukemia (CLL). Additionally, [REDACTED] is available for use in other lymphoid cancers and specimen types as a CLIA-validated laboratory developed test (LDT). The [REDACTED] Assay measures minimal residual disease (MRD) to monitor changes in burden of disease during and after treatment. The test is indicated for use by qualified healthcare professionals in accordance with professional guidelines for clinical decision-making and in conjunction with other clinicopathological features. The estimated total value is [REDACTED] with a base plus four (4) twelve-month option periods.

4. Authority Cited: 41 United States Code 1901 as implemented in Federal Acquisition Regulation 13.501(a)(1)(ii), sole source (including brand name) under the authority of the simplified procedures for certain commercial items.

5. Reason for Authority Cited: The highly specialized [REDACTED] genetic testing required by the BAMC Department of Pathology is only available from a single source: [REDACTED]. [REDACTED] is the only company offering [REDACTED] testing. The first and only FDA-cleared assay for MRD monitoring in any lymphoid cancer. [REDACTED] is FDA cleared for the detection and monitoring of measurable residual disease (MRD) in bone marrow samples from myeloma and b-all patients.

6. Efforts to Obtain Competition: A sources sought was posted from 15 January 2025 to 07 February 2025. There were two (2) responses: [REDACTED] and [REDACTED].

7. Actions to Increase Competition: [REDACTED] is the only U.S. FDA licensed testing facility that can meet the requirement. However, progress is occurring rapidly in the field. BAMC laboratory domain experts are continually looking ahead to the next major breakthroughs to advance medical testing capabilities. In the coming option years, BAMC domain experts will continue to conduct market research and solicit input from the broader laboratory community on new testing capabilities to offer DoD beneficiaries.

8. Market Research: Prior to the posting of the sources sought notices, market research was conducted by DPALS personnel to determine the likelihood of other laboratory testing companies being able to satisfy this requirement. The methods used included internet searches, a review of the College of American Pathologists' website as well as Electronic Cataloging (ECAT) and the General Service Administration (GSA) Federal Supply Schedule (FSS) for FDA approved genomic sequence analysis. After searching the Government known sources of services, DPALS confirmed that there is only one source which can provide FDA approved testing services. Market research was performed from 15 January 2025 to 4 March 2025.

9. Interested Sources: A Sources Sought Notice was posted to <https://sam.gov>, the official GPE, on 15 January 2025 with a response due date of 07 February 2025 to find companies (small and other-than-small) that could satisfy this requirement. Of the two (2) received responses, based on DPALS technical review of [REDACTED] Corporation's Capability Statement on 17 January 2025, it has been determined by DPALS that only [REDACTED] meets the requirements for this effort.

[REDACTED] was deemed not technically acceptable because the Haystack test offered is for solid tumor Minimal Residual Disease (MRD) testing and not designed to compete with leukemia/lymphoma MRD testing of [REDACTED] is FDA approved for MRD detection in blood cancers.

Vendor Name	Biz Size	Location	Point of Contact	Capability Assessment
[REDACTED]	Large Cage code: [REDACTED]	[REDACTED]	[REDACTED]	Technically capable

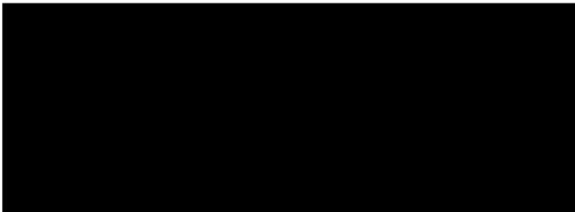
Vendor Name	Biz Size	Location	Point of Contact	Capability Assessment
	Large Cage Code: 			Not technically capable

10. Other Facts:

- a. Procurement history. N/A This is a new requirement
- b. Other facts. N/A This is a new requirement

11. Technical Certification:

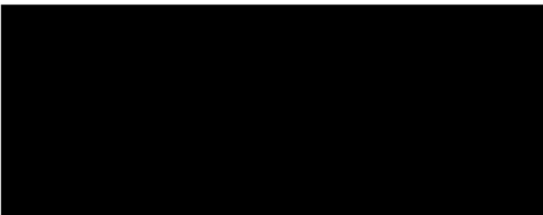
I certify that the supporting data under my cognizance, which are included in the justification are accurate and complete to the best of my knowledge and belief.



Date: see digital signature

12. Requirements Certification:

I certify that the supporting data under my cognizance, which are included in the justification are accurate and complete to the best of my knowledge and belief.



Date: see digital signature

13. Fair and Reasonable Cost Determination:

I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable based on the independent Government estimate.

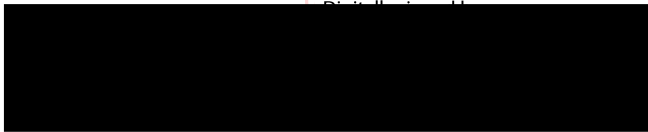


Contracting Officer

Date: see digital signature

14. Contracting Officer Certification:

I certify that this justification is accurate and complete to the best of my knowledge and belief.



Contracting Officer

Date: see digital signature



Approval

Based on the foregoing justification, I hereby approve the procurement of [REDACTED] reference testing service for [REDACTED] on another than full and open competition basis pursuant to the authority of 41 U.S.C. 1901 or 41 U.S.C. as implemented by FAR 13.501, subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for acquisition.



Contracting Officer

Date: see digital signature